

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1607 of 2021

Applicant :- Sadre Alam @ Lal Babu

Opposite Party :- Shri Ajay Kumar Gautam, Executive Engineer

Counsel for Applicant :- Rajesh Kumar Singh, Rajesh Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Heard learned counsel for the applicant through video conferencing.

By order dated 27.2.2020 passed in Writ C No.6882 of 2020 filed by the applicant, the Court directed as under:

"In view of the above, we dispose of the writ petition with liberty to the petitioner to approach the forum and we further direct that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed assessment and other allied issues within two weeks from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks."

Learned counsel for the applicant submits that a certified copy of the aforesaid order was submitted for compliance before the opposite party on 12.3.2020 but the opposite party has wilfully not complied with the order and, thus, has committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite party to comply with the aforesaid order of the Court within six weeks from the date of production of a certified copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed stamped envelope to the office within one week from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite party within one week thereafter and keep a recorded thereof.

The opposite party shall comply with the directions of the writ court and intimate him of the order through the self-addressed envelop within a week thereafter.

With the aforesaid observations, this application is disposed of at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite

party within the stipulated time as aforementioned.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioners alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 8.6.2021

RKP